



CHAPTER xxxix.

An Act to confirm a Provisional Order under the Land Drainage Act 1918 relating to a Drainage District in the administrative county of Westmorland. A.D. 1926.
[15th July 1926.]

WHEREAS the Minister of Agriculture and Fisheries made the Provisional Order set forth in the schedule hereto under the provisions of the Land Drainage Act 1918 :

And whereas the Order was duly published and a memorial was duly presented by a person affected by the Order and having such interest as is prescribed by the said Act as being sufficient for the purpose praying that the Order should not become law without confirmation by Parliament and such memorial has not been withdrawn :

And whereas it is requisite that the said Order should be confirmed by Parliament :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Order as amended and set out in the schedule hereto shall be and the same is hereby confirmed and all the provisions thereof shall have full validity and force.

Confirma-
tion of
Order in
schedule.

2. This Act may be cited as the Land Drainage Provisional Order Confirmation (No. 1) Act 1926.

Short title.

A.D. 1926.

S C H E D U L E.

WESTMORLAND DRAINAGE DISTRICT.

WHEREAS a petition has been presented to the Minister of Agriculture and Fisheries (hereinafter called "the Minister") by the proprietors of more than one-tenth of certain lands situate wholly or mainly in the parishes of Crosthwaite and Lyth Underbarrow and Bradleyfield Helsington Levens Witherslack Meathop and Ulpha Heversham Milnthorpe Haverbrack Beetham and Arnside and shown in colours on a map to which the seal of the Minister has been affixed in relation to this Order which lands are hereinafter referred to as "the district" for the constitution of the district as a separate drainage district for the purposes of Part II. of the Land Drainage Act 1861 :

And whereas the Minister after consultation with the council of the administrative county of Westmorland is of opinion that it is desirable that the district should be constituted a separate drainage district for the purposes aforesaid and that such incidental consequential or supplemental provisions as are hereinafter contained are necessary or proper for the purposes of this Order :

Now therefore the Minister by virtue and in exercise of the powers vested in him under the Land Drainage Act 1918 and of every other power enabling him in that behalf hereby orders as follows :—

Constitution
of separate
drainage
district.

1.—(1) The district is hereby constituted a separate drainage district for the purposes of Part II. of the Land Drainage Act 1861 and of the Land Drainage Act 1918 and shall be styled the Lyth Levens and Meathop Drainage District and the drainage board of the district shall be styled the Lyth Levens and Meathop Drainage Board.

(2) Where the site of a culvert under any railway or canal or towing-path is included in the district and coloured on the said map and the railway or canal or towing-path on either side thereof is not coloured the railway or canal or towing-path lying above such culvert shall not by reason of the culvert being so included and coloured be deemed to be included in the district.

Regulations
with respect
to drainage
board.

2. The following provisions shall have effect with respect to the drainage board for the district that is to say :—

(1) The first members of the drainage board shall consist of the thirteen persons named in the Schedule to this Order and of two persons to be appointed by the council of the administrative county of Westmorland :

(2) The first meeting of the drainage board shall be summoned by a notice under the hand of the clerk to the agricultural committee for the county of Westmorland which shall be sent by registered post to each member of the drainage board at least fourteen days before the day of meeting : A.D. 1926.
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(3) The first members of the drainage board shall vacate office on the first Thursday in September in the year following that in which this Order shall have been confirmed :

(4) As from the first Thursday in September in the year following that in which this Order shall have been confirmed the drainage board shall consist of eight elected members of whom four shall be representatives of the area coloured green on the said map and four shall be representatives of the area coloured yellow on the said map and six appointed members :

Provided that the Minister may at any time after consultation with the drainage board by Order under seal vary the number of members constituting the drainage board by the addition of a member or members to be appointed by any local authority of a district for the purposes of the Public Health Act 1875 or any highway authority which may hereafter in pursuance of section five of the Land Drainage Act 1918 contribute or undertake to contribute to the expenses of the execution or maintenance of any drainage works by the drainage board or by any two or more of such authorities :

(5) Subject to the provisions of this Order the elected members of the drainage board representative of the said areas shall be elected in the manner directed by Part I. of the Schedule to the Land Drainage Act 1861 by the persons who on the first day of August immediately preceding the election were proprietors or occupiers of the messuages or lands in the area and have then paid all such rates (if any) levied and demanded from them :

Provided that it shall be lawful for the drainage board for the purposes of any election of members representative of the said areas respectively to convene separate meetings in such places and on such days as may be convenient and that an elector shall in each area in respect of which he is entitled to vote have one vote in respect of each member to be elected and no more :

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- (6) The qualification required for an elected member of the drainage board shall be in accordance with the following provisions :—

A person shall not be qualified for election as a representative of either of the said areas unless he is either the proprietor of not less than ten acres of land in that area or the agent of such a proprietor having the management of the land or the occupying tenant yearly or otherwise of not less than twenty acres of land in that area or is a member officer or servant of a body corporate which is the proprietor of not less than ten acres or the occupier of not less than twenty acres of land in that area and is nominated for election by such body corporate as representing their interest in such land or such officer or servant being charged with the management of such land on behalf of such body corporate :

- (7) The membership of an elected member shall terminate on his giving notice in writing to the clerk of the board of his resignation or if he shall cease to be qualified for election as such representative or if he becomes bankrupt :
- (8) Of the six appointed members two shall be appointed by the council of the administrative county of Westmorland and four members shall be appointed by the Meathop and Witherslack Drainage Board :
- (9) The term of office of every appointed member of the drainage board shall be three years unless before the expiration of such period he becomes bankrupt or resigns or his appointment is revoked by the body by which he was appointed and the provisions of section 68 of the Land Drainage Act 1861 (Regulations as to drainage boards) with respect to vacating office and vacating or retiring members or casual vacancies shall not apply to the appointed members :
- (10) Every member of the drainage board may on the expiration of his term of office if eligible for re-appointment or re-election be re-appointed or re-elected and if at the time when the appointment or election of members ought to take place the place of any retiring member is not filled up the retiring member whose place is not filled up shall continue in office until his successor is appointed or elected :
- (11) Any casual vacancy occurring in the drainage board may in the case of an appointed member be filled by the body by which the vacating member was appointed or in the case of an elected member be filled by the drainage board but any person so appointed shall retain his office

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so long only as the vacating member would have retained the same if no vacancy had occurred : A.D. 1926.

- (12) During any vacancy in the drainage board whether by failure of any body to appoint a member or otherwise the existing members may act as if such vacancy had not occurred :
- (13) Any act of the drainage board or of any committee or sub-committee thereof shall not be invalidated by reason of any defect in the appointment or election of any member of the drainage board or of any such committee or sub-committee :
- (14) Five members of the drainage board shall form a quorum for all purposes :
- (15) Subject to the provisions of any Act of Parliament to the contrary where a corporation aggregate or any commissioners proprietors or other undertakers are owners or occupiers of any land such corporation commissioners proprietors or undertakers respectively shall be deemed to be one owner or occupier for the purposes of this Order and may appoint for such period as they may determine a deputy to vote and such deputy shall be appointed in the case of a College either under the common seal or under the hands of the Head or Senior Bursar or Treasurer of such College and in the case of any other corporation under their common seal and in any other case under the hands of three commissioners proprietors or the undertakers professing to act for the whole :
- (16) If any land is owned by joint tenants or tenants in common such one of them as they may agree may for the purposes of this Order be treated as the proprietor of such land.

3. Notwithstanding anything contained in the Land Drainage Acts 1861 and 1918 or this Order the powers hitherto exercisable by any drainage authority having powers or duties in relation to the drainage of any part of the district shall not cease except so far as the same are exercisable in relation to (1) the Outfall Sluice Main Outfall Drain Embankment and New Ulpha Channel and Sluice constructed in the years 1923 1924 and 1925 and indicated on the said map by the following descriptions respectively " New Outfall Sluice 1924 " " New Main Outfall Drain 1924 " " New Embankment 1924 " and " New Ulpha Channel and Sluice 1924 " (2) any other work declared by the drainage board for the district to be an arterial drainage work Provided always that in case any difference of opinion shall arise between the drainage board and any other drainage authority as to whether any works are works of arterial drainage or in

Saving of certain powers of existing drainage authorities.

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A.D. 1926. case any dispute shall arise between the drainage board and any other drainage authority as to their respective jurisdictions the same shall be referred to the Minister whose decision shall be final and binding.

Liability to repair new works. 4. The drainage board shall maintain in proper repair and condition the works known as the "New Outfall Sluice 1924" the "New Main Outfall Drain 1924" the "New Embankment 1924" and the "New Ulpha Channel and Sluice 1924."

Rating. 5.—(1) Any expenses incurred by the drainage board in the execution or maintenance of the drainage works referred to in this Article shall be defrayed in accordance with the following table wherein the expression "the full rate" and the fractions indicate the proportions in which the rate in the pound or per acre as the case may be shall be levied on lands situate in the areas mentioned such areas being indicated on the said map by the letters A B C and D and coloured respectively yellow green pink and blue.

Section of Works.	Areas rateable to expenses on or allocated to Works shown in preceding column.	Proportion in which lands in the several Areas are to be rated for such expenses.
New Outfall Sluice 1924 - New Main Outfall Drain 1924.	} A B C and D -	The full rate.
New Embankment 1924 -	{ A and B - - C - - - D - - -	Quarter rate. Half rate. The full rate.
New Ulpha Channel and Sluice 1924.	A and B - -	The full rate.

(2) The drainage board may allocate such part as they think proper of their administrative and general expenses (other than the expenses of the execution and maintenance of works) to any work and any expenses so allocated shall be deemed to be expenses of the execution and maintenance of the works to which the expenses are so allocated.

(3) Any culvert whether coloured or not on the said map shall if it connects parts of any area within the district be deemed to be part of the area the parts of which are connected thereby or where the culvert connects two areas be deemed to be part of the area from which water is discharged through it.

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6. Nothing in this Order shall be deemed to be or shall operate as a grant by or on behalf of the Crown as owner of the tidal lands below high-water mark of ordinary tides of any estate or interest in or right over such tidal lands or any part thereof nor shall anything herein authorise the execution of any works on over or under tidal lands below high-water mark of ordinary spring tides or the using thereof except in accordance with such plans and sections and subject to such restrictions and regulations as previous to such works being commenced have been approved by the Board of Trade in writing under the hand of one of the secretaries or assistant secretaries of the Board of Trade or confer on the drainage board any power of levying drainage rates in respect of the said tidal lands.

A.D. 1926.

Saving of
Crown and
other rights.

7. The drainage board may within twelve months after the confirmation of this Order repay to any person or body the amount of any expenditure incurred or borne by such person or body in the execution since the first day of October nineteen hundred and twenty-three of any drainage works for the improvement of the outfall of the drainage of the drainage district (being such works as the drainage board could themselves have executed if this Order had been confirmed on or before the said date) to the extent to which the drainage board shall consider the execution of such works to have been necessary and proper or so much of such expenditure as they shall consider to have been reasonably incurred.

Repayment
of expenses
on works
executed
prior to this
Order.

8. Nothing in this Order shall prejudice or affect any right of the owner of the Dallam Tower Estate in respect of those portions of the said estate situate in Foulshaw Nether-Levens or elsewhere which are coloured brown on the said map to drain into the main drain previously called the Levens Helsington and Underbarrow Main Drain by virtue of the award made in pursuance of an Act passed in the year 1838 or otherwise or any exemption of the said lands or any of them from rating by virtue of the said Act or otherwise and any such power may be exercised in connection with any new drains executed by the drainage board and any such exemption shall extend to all rates levied by the drainage board or by any board body or corporation with which the drainage board shall or may be subsequently amalgamated or merged and/or which shall from time to time have authority over the drainage of the district and/or levy drainage rates in respect of the lands comprised therein or any of them.

Saving for
Dallam
Tower
Estate.

9.—(1) No works shall be executed under the powers of this Order which will interfere with any railway or with any main road or the foundations of any bridge forming part of such main road or with the foundations or piers of any bridge forming part of such railway without the consent in writing of the owners

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A.D. 1926. thereof or of the County Council as the case may be but such consent not to be unreasonably withheld.

(2) Any difference arising between the drainage board and the owner of any railway or bridge under this Article shall unless otherwise agreed be referred to an arbitrator to be appointed unless otherwise agreed by the President of the Institution of Civil Engineers on the application of either party after notice thereof to the other subject to and in accordance with the provisions of the Arbitration Act 1889.

Expenses of
Order.

10. The expenses of the Minister and such expenses as shall be certified by the Minister to have been reasonably incurred by the petitioners in relation to the making or confirmation of this Order shall be a first charge on the rates leviable in the district in respect of the drainage board's general administrative expenses.

In witness whereof the Official Seal of the Minister of Agriculture and Fisheries is hereunto affixed this eighth day of June nineteen hundred and twenty-five.

(L.S.)

A. T. A. DOBSON
Assistant Secretary.

SCHEDULE.

FIRST MEMBERS OF THE DRAINAGE BOARD.

1. Cecil G. Argles Esquire of Sibson Wansford Peterborough.
2. Frederick Bell Esquire of Low Greenriggs Underbarrow Kendal.
3. Francis William Crewdson Esquire of Beathwaite Greer Milnthorpe Westmorland.
4. Lawrence Steele Hoggarth Esquire of Midland Bank Chambers Kendal.
5. William Howson Esquire of Hawes Farm Helsington Kendal.
6. Charles Bates Punchard Esquire of 14 Finkle Street Kendal.
7. Hartly Trotter Esquire of The High Crosthwaite Kendal.
8. William Donald Paul Watson-Gandy Esquire of Heaves Kendal.

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|---|---|-----------------|
| 9. Lawrence Nanson Esquire of Haverbrack Milnthorpe Westmorland. | } Nominated
for this
purpose by the
Meathop and
Witherslack
Drainage
Board. | A.D. 1926.
— |
| 10. John Mason Dixon Esquire of Low Meathop Grange-over-Sands. | | |
| 11. Robert Bertrand Jackson Esquire of 49 Market Street Ulverston. | | |
| 12. John Stalker Esquire Junior of 57 Highgate Kendal. | | |
| 13. Herbert Lushington Storey of Burton Hill House Malmesbury Wilts (or his nominee). | | |

Two members to be appointed by the Westmorland County Council.

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